

		documentation to rebut defendant's challenge (total \$1,006.29). The court awards \$16,823.00 in attorney fees and \$1,436.40 in costs. Clerk to give notice.
7	Melendez vs. General Motors, LLC 30-2024-01413483-CU-BC-CJC	Motion for Attorney Fees and Costs Off calendar. Case dismissed.
8	Cassery vs. Kavrell 30-2025-01471660-CU-OR-CJC	Demurrer to First Amended Complaint Off calendar. Case settled.
9	Nguyen vs. Ma 30-2025-01518657-CU-OR-CJC	Demurrer to First Amended Complaint Defendant Lance Ma, an individual and as administrator of the Estate of Victor Luu's Demurrer to Plaintiff Tuan Nguyen's First Amended Complaint is CONTINUED to 8/14/2026. Defendant's counsel did not sufficiently meet and confer prior to filing the demurrer. An in-person, telephonic or video conference meet and confer is required. (Code Civ. Proc., § 430.41, subd. (a).) Defendant is ORDERED to file a new declaration 5 court days prior to the continued hearing. (<i>Id.</i>, subd. (a)(2).) Clerk to give notice.
10	Gomez vs. State Farm General Insurance Company 30-2026-01549079-CU-IC-CJC	Demurrer to Complaint and Motion to Strike Complaint Defendant State Farm General Insurance Company's unopposed Demurrer to the Complaint is SUSTAINED with 10 days leave to amend. The unopposed Motion to Strike is DENIED as moot. Defendant demurs to the second cause of action for money damages for tortious bad faith. A cause of action for bad faith "involves something beyond breach of the contractual duty itself" and requires unfair dealing rather than mistaken judgment. (<i>Careau & Co. v. Security Pacific Business Credit, Inc.</i> (1990) 222 Cal.App.3d 1371, 1395.) "If the allegations do not go beyond the statement of a mere contract breach and, relying on the same alleged acts, simply seek the same damages or other

		relief already claimed in a companion contract cause of action, they may be disregarded as superfluous as no additional claim is actually stated.” (<i>Ibid.</i>) Here, the facts alleged in the complaint amount to nothing more than a dispute over coverage, not unreasonable conduct. Defendant seeks to strike punitive damages allegations and prayer for relief from the complaint. Plaintiffs requested punitive damages in connection with the second cause of action for money damages for tortious bad faith. Because the demurrer to the second cause of action is sustained, the motion to strike is moot. If Plaintiffs choose to amend, Plaintiffs are ORDERED to file a red-line and clean copy of the amended complaint. Clerk to give notice.
11	Sadeghi vs. Quality Auto Specialists, Inc. 30-2025-01527489-CU-PO-CJC	Special Motion to Strike the Second, Third, and Fourth Causes of Action Cross-Defendant Mohammed Sadeghi’s unopposed special motion to strike (Anti-SLAPP) Motion is GRANTED. The second, third, and fourth causes of action in QAS Inc.’s Cross-Complaint are stricken. Clerk to give notice.
12	Gutierrez vs. 400 Baker, LLC 30-2024-01437683-CU-PO-CJC	Motion for Summary Judgment and/or Summary Adjudication Defendants 400 Baker, LLC and Guichet Properties, LLC’s Motion for Summary Judgment or, in the alternative Summary Adjudication as to plaintiff Francisco Lara Gutierrez’s First Amended Complaint is DENIED. Plaintiff’s Evidentiary Objections to Declaration of Michael Vredenburg are OVERRULED as to Objection Nos. 1-6, 8 and SUSTAINED as to No. 7. The First Amended Complaint (“FAC”) alleges causes of action for Negligence and Premises Liability against Defendants. A triable issue of material fact exists as to whether Defendants had constructive knowledge of a dangerous condition of the stairs based on Plaintiff and his wife’s complaints of “unstable,” “cracking,” and “squeaking” stairs. (UMF Nos. 10, 11, 15, 16.) Moving Defendants to give notice.